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Pursuant to article 88 item 2 of the Constitution of the Republic of Montenegro I pronounce

**EDICT
ON PROMULGATING LAW ON CHANGES AND AMENDMENTS OF
GENERAL LAW ON EDUCATION**

I promulgate the Law on Changes and Amendments of General Law on Education, adopted by the Constitutional Assembly of the Republic of Montenegro, at the sixth meeting of the first regular session in 2007, on 25th July 2007.

Number: 01-965/2
Podgorica, 2nd August 2007

President of the Republic of Montenegro,

Filip Vujanović

**LAW
ON CHANGES AND AMENDMENTS OF GENERAL LAW ON EDUCATION**

Article 1

In General Law on Education (»Official Journal of the RM«, numbers 64/02 and 31/05), in article 3, paragraph 1 after the word »school« the words »educational center« shall be added.

Article 2

In article 5 paragraph 1 words: »(hereinafter referred to as: the institution of public education)« shall be removed.

In paragraph 2 words: »the public education« shall be substituted by words »from paragraph 1 of this article«.

Article 3

In article 9 after the paragraph 1 two new paragraphs shall be added; they read:

»Foreign citizens may be educated as the citizens of the Republic under the conditions of reciprocity«.

Foreign citizens who have temporary stay or permanent residing in the Republic, shall be equal in exercising the right to education with the citizens of the Republic, pursuant to a special law«.

Article 4

In article 11 after the paragraph 4 a new paragraph shall be added; it reads:

»The teaching for persons who use the language of signs is performed in the language of signs and by means of the instruments of that language«.

Article 5

In article 13 paragraph 1 words »institution for public education« shall be substituted by words: »institution which publicly exercises valid educational curricula«.

Article 6

In article 18 after item 2 three new items shall be added:

»3) School for art education« is school in which elementary respectively secondary art education are exercised;

4) »Two years post-secondary school« is school in which advanced professional education is realized;

5) »educational center« is an institution in which more various educational curricula from a number of educational levels are realized«.

Former items 3, 4, 5, 6, 7, 8, 9, 10, 11, 12, 13, 14 and 15, shall become items 6, 7, 8, 9, 10, 11, 12, 13, 14, 15, 16, 17 and 18.

Article 7

In article 22 after item 3 a new item shall be added; it reads:

»Prior to establishing a special part of publicly valid educational curriculum related to subject curricula which express the special quality of minorities, the Council of Minority shall present its opinion to the competent Council.«

Article 8

In article 25 paragraph 1 words: »12 months« shall be substituted by words: »three months«.

Article 9

In article 26 paragraph 1 after word »valid« word »educational« shall be added.

Article 10

In article 27 after paragraph 3 a new paragraph 4 shall be added; it reads:

»Art education is realized in schools for elementary and secondary art education, in harmony with law«.

After paragraph 5 new paragraph 6 shall be added; it reads:

»Advanced professional education is realized by twoyears post-secondary schools, in harmony with law«

After paragraph 6 a new paragraph 7 shall be added; it reads:

»In educational center more various educational curricula from a number of levels of education may be exercised«.

In paragraph 7 after words »children« words: »and youth« shall be added.

Former paragraphs 4, 5, 6, 7, 8 and 9 become 5, 6, 8, 11 and 12.

Article 11

In article 32 words «in cooperation with professional associations of teachers» shall be removed.

Article 12

In article 33 paragraph 1 shall change and read: »One third of members of the Council for Vocational Education shall be proposed by:

- the Ministry
- Centre for Vocational Education and Ministry competent for the affairs of labor and social care;
- Association of Employers and trade union«.

Article 13

In article 34 paragraph 1 shall change and read: : »One third of members of the Council for the Adult Education shall be proposed by:

- the Ministry and the Bureau for Educational Services,
- Center for Vocational Education and Ministry competent for the affairs of labor and social care,
- Association of Employers and trade union«.

Paragraph 2 shall be removed.

Article 14

In article 35 item 2 indented line 5 shall change and read:

- »curriculum of professional training and specialisation of directors of the institutions«.

In item 3 indented line 1 after words »curricula« words »for elementary education and general secondary education« shall be added.

In item 3 after the indented line 4 a new indented line 5 shall be added; it reads:

- »list of obligatory selective subjects for elementary school and high school«.

Article 15

In article 36 item 1 indented line 1 after words » master craftsman's«, a comma shall be added, and words: »and diploma« substituted by words: »diploma and other exams«.

In item 1 after the indented line 3 a new indented line 4 shall be added; it reads:

- »curricula of professional training and specialisations of directors of vocational schools«.

In item 3 indented line 1 words: »subject curriculum« shall be substituted by words: »educational curricula«.

In item 3 indented line 2 words: »subject curriculum« shall be substituted by words: »educational curricula«, and after the word »children« words »and youth« shall be added.

In item 4 after the indented line 1 two new indented lines shall be added; they read:

- » - standards of occupations;
 - catalogues of standards of knowledge and competencies;«.
- Former indented lines 2 and 3 become indented lines 4 and 5.

Article 16

In article 37 item 2 indented line 2 after word »adjusted« word »educational« shall be added.

Article 17

In article 40 paragraph 1 item 11 shall be removed.

Former items 12 and 13 shall become items 11 and 12.

Article 18

In article 41 paragraph 1 item 11 shall be removed.

Former items 12 and 13 shall become items 11 and 12.

Paragraph 2 shall be removed.

Article 19

In article 41b item 1 after word »prepares« the word »tasks« shall be added.

In item 2 words: »exam tasks« shall be replaced by word »exams«.

Article 20

In article 43 paragraph 1 shall change and read:

»By exception of paragraph 2 of this article, foreign legal and physical person may found elementary school only for education of foreign citizens«.

Article 21

In article 46 paragraph 1 item 2 after words »curriculum« the words »in harmony with this law, or a foreign educational curriculum has been approved«.

After paragraph 1 a new paragraph 2 shall be added and it reads:

»By exception from paragraph 1 of this article, on occasion of founding elementary schools for education of foreign citizens conditions from items 1 and 3 shall be rated«.

Former paragraphs 2 and 4 shall be removed.
In paragraph 3 words: »and paragraph 2« shall be removed.

Article 22

In article 48 paragraph 2 shall change and read:
»Decision on foundation of branch institution, respectively educational division of a public institution shall be adopted by the Ministry«.

Article 23

After article 48 a new subtitle shall be added as well as article 48a which read:

»Laboratory Schools«

Article 48a

The institutions which meet required personnel, pedagogical and material conditions may be organized as laboratory schools, in which employed teachers of school are specialised, respectively where the pedagogical-metodic practical work of students of the faculty for teacher training is exercised.

Decision on designating schools for laboratory schools is adopted by the Ministry, at the proposal by the Faculty for Teachers' Training.

Mutual relations of Teachers' Training Faculty and laboratory schools shall be regulated by a contract«.

Article 24

In article 55 paragraph 2 words: »two years« shall be substituted by words: »one year«.

Article 25

In article 57 paragraph 2 words: »the managing body of the institution, according to the approval of the founder« shall be substituted by word »founder«.

Paragraph 3 shall change and read:

»Status changes of the institution shall not be carried out in course of the teaching year«.

Article 26

In article 61 paragraph 1 shall change and read:

»School and teaching year start, as a rule, on 1st September«.

Paragraphs 2 and 3 shall be removed.

Article 27

In article 72 paragraph 4 shall change and read:

»Number of members of school, respectively managing board of a public institution shall not be below five, or above nine members«.

Article 28

Article 73 shall change and read:

»School, or managing board of institutions from the field of preschool education, elementary education, secondary general education and education of children and youth with special needs shall be composed of: two representatives of the Ministry, respectively two representatives of the municipality for institutions whose founder is the municipality, two representatives of the Bureau for Educational Services, two representatives of the employees and one representative of parents.

School, respectively managing board of the institutions from the field of vocational education shall be composed of: three representatives of the employees, two representatives of the Ministry, respectively two representatives of the municipality for the institutions founded by the municipality, two representatives of Center for vocational education, one representative of social partners and one representative of parents.

Managing board of student dormitories shall be composed of: two representatives of the Ministry, respectively two representatives of the municipality for the institutions founded by the municipality, two representatives of employees and one representative of the Bureau for Educational Services.

School, respectively managing board of mixed secondary schools and educational centers shall be composed of: three representatives of the employees, two representatives of the Ministry, respectively two representatives of the municipality for the institutions whose founder is the municipality and one representative each of social partners, Center for vocational education, Bureau for Educational Services and parents.

Managing board of institutions for adults education shall be composed of: one representative each of the Ministry, respectively municipality for the institutions whose founder is the municipality, Bureau for Educational Services, Center for Vocational Education, employees and social partners.

Representatives of the employees shall be selected by teachers' respectively professional council by a secret vote.

Representatives of parents shall be selected by parents' council by a secret vote.

Meetings of school, respectively managing board may be attended by the representative of students' community, that is attendees and a representative of students.

Mode of selecting and discharging of members of managing board from employees working in dormitory and institutions for adults education shall be regulated by statute of the institution.

The provisions of this article shall not refer to a private institution«.

Article 29

In article 74 paragraph 1 words: »except the representatives of students that shall be selected for the period of two years« shall be removed.

After paragraph 2 a new paragraph 3 shall be added; it reads:

»Should school or managing board of a public institution not be constituted within three months after the expiration of the term of office, minister, at the proposal of the principal or of the competent inspection, may nominate school, or managing board, for a period that shall not exceed six months«.

Article 30

In article 75 paragraph 1 words: »or of the Bureau for Educational Services« shall be removed.

Article 31

In article 78 after paragraph 2 two new paragraphs shall be added; they read:

»By the exception from paragraph 1 items 2 and 3 of this article, for director of dormitory a person who passed relevant professional exam and who has five years of work experience may be selected.

For a director of a public institution with teaching in the language and letter of minority a person may be selected who, in addition to conditions set forth in paragraph 1 of this article, has an active command of the language and letter of that minority and the language which is in the official use in the Republic«.

Former paragraph 3 becomes paragraph 5.

Article 32

In article 79 paragraphs 1 and 2 word »training« in a respective grammatical case shall be substituted by words »qualifying and training« in a respective grammatical case.

In paragraph 2 after word »educational services« words: »and Center for Vocational Education« shall be added.

Article 33

In article 80 paragraph 2 word »public« shall be removed.

In paragraph 4 words: »after obtaining the opinion of the Panel of Teachers, or the Professional Panel, of the municipality, as well as according to the provided opinion of the Parent Council (except in the institutions for adults education), and in student dormitory after obtaining the opinion of student community as well« shall be removed.

Paragraph 5 shall be removed.

In paragraph 6 after the word »minister« fullstop shall be removed and the following words shall be added: »and for selection of the principal from article 78 paragraph 4 of this law the opinion of the Council of Minority shall be obtained«.

Former paragraph 6 shall become paragraph 5.

Article 34

In article 81 paragraphs 1, 2 and 3 words: »out of the rank of employees« shall be removed.

In paragraph 1 and 3 the words: »12 months« shall be substituted by words: »six months«.

In paragraph 3 words: »paragraph 6« shall be substituted by words: »paragraph 5«.

Article 35

In article 82 paragraph 1 after item 13 a new item shall be added; it reads:

»14) a commission for assessment of the knowledge of students in course of teaching, shall be composed at the request of student, parent or custodian«.

Former item 14 shall become item 15.

After paragraph 1 three new paragraphs shall be added; they read:

»The principal shall form the Commission from paragraph 1 item 14 of this article within 24 hours from the submission of the request for assessment of the knowledge of the student.

The Commission shall consist of at least one member that is not an employee of that institution.

The assessment of the Commission is final«.

Former paragraph 2 shall become paragraph 5.

Article 36

In article 87 after paragraph 3 a new paragraph 4 shall be added; it reads:

»In educational center teachers' that is professional boards shall be formed by educational curricula, respectively by the levels of education«.

Article 37

In article 88 paragraph 1 words: »teachers and educators« shall be substituted by words: »teachers, educators, principal, assistant principals and professional associates«.

Article 38

In article 89 paragraph 1 item 2 shall change and read:

» 2) shall establish conclusive final grade at the end of the teaching year, in harmony with law«.

Article 39

In article 90 after word »difficulties« words: »establish conclusive grades at the end of classification periods« shall be added.

Article 40

In article 92 paragraph 1 words: »decide on disciplinary measures« shall be substituted by words: »pronounce warnings and propose other educational measures«.

After paragraph 1 a new paragraph 2 shall be added; it reads:

»Grade teacher shall inform the student on the mark established by classroom's council within 24 hours as of establishing the mark«.

Former item 2 shall become item 3.

Article 41

In article 95 paragraph 1 item 2 shall be removed.

Former items 3, 4, 5 and 6 shall become items 2, 3, 4 and 5.

Article 42

In article 97 paragraph 1 item 4 after word »ask« the word »commission«, shall be added and words: »school year« shall be replaced by words »lasting of teaching process«.

After the item 4 a new item shall be added; it reads:

»5) to submit a reproach on the assessment at the end of a classification period, school year or at an exam«.

In item 6 after word »information« the following words shall be added: »on his/her rights and responsibilities«.

Former items 6, 7, 8, 9 and 10 shall become items 7, 8, 9, 10 and 11.

Article 43

After article 98 a new subtitle and article 98a shall be added, as follows:

»Responsibility for a Damage Made«

Article 98a

The student shall reimburse the damage he/she has made in the institution.

Procedure of establishing the responsibility and mode of reimbursing for the damage shall be more closely regulated by the statute of the institution«.

Article 44

In article 101 after the paragraph 1 a new paragraph 2 shall be added; it reads:

»Teachers in institutions or in special classroom of the institution with instruction in the language of minority shall, in addition to the conditions set forth by the law, have an active knowledge of language and letter of that minority and of the language which is in official use in the Republic«.

Former paragraphs 2, 3, 4 and 5 shall become paragraphs 3, 4, 5 and 6.

Article 45

In article 103 paragraph 2 words: »or of the Panel of Teachers of the institution« shall be substituted by words: »professional section«.

Paragraph 3 shall change and read:

»Jobs and tasks of mentor shall be stipulated by a regulation of the Ministry«.

Article 46

In article 108 paragraph 1 words: »a teacher-trainee, during the trainee period, or of a teacher« shall be removed, and words: »direct execution of the teaching process« shall be substituted by words: »affairs of education«.

Article 47

In article 111 item 13 shall change and read:

»13) commissions for assessing the knowledge of students from article 82 paragraph 1 item 14 of this law establish that a teacher in course of the teaching process in one school year has assessed a student with bias or has not assessed him/her in a prescribed manner«.

After paragraph 1 a new paragraph 2 shall be added; it reads:

»The teacher whose labor relation terminated in case stipulated by items 2, 5, 9 and 10 of this article shall not be permitted to perform educational work«.

Article 48

In article 113 paragraph 2 after words: »at the proposal of the Panel of Teachers, or the Professional Panel of the institution« shall be removed.

In paragraph 3 after word »procedure« words »proposing and« shall be added.

Article 49

In article 119 paragraph 1 words: »a national of the Republic that abroad« shall be replaced by words: »person that«, after word: »particular school grades« words: »respectively classification periods according to foreign curriculum«, and after word »particular« words: »classification period, or« shall be added.

Paragraph 2 shall be removed.

Article 50

In article 135 paragraph 2 words: »Institutions of public education« shall be replaced by words: »Public institution«.

Article 51

In article 136 paragraph 1 words: »Founder of which the Republic or the municipality is« shall be removed.

Item 14 shall be removed.

In item 16 word »training« shall be replaced by »qualification and specialization«.

Item 21 shall be removed.

Former items 15, 16, 17, 18, 19, 20 and 22 shall become items 14, 15, 16, 17, 18, 19 and 20.

Article 52

In article 139 paragraph 1 words: »shall have the right« shall be substituted by word »may«.

Article 53

Subtitle: »The right to subvention« and article 140 shall be removed.

Article 54

Article 142 shall change and read:

»The compensation of tuition fee per student, or child in private institution shall be determined by the founder«.

Article 55

Subtitle: »The limitation of salaries« and article 143 shall be removed.

Article 56

After article 153 a new article 153a shall be added; it reads:

Selection, or nomination of school, respectively managing board, in line with this law, shall be implemented within 90 days as of the day of coming of this law into force.

Until the selection, respectively nomination of school, or managing board, in line with paragraph 1 of this article, function of managing body shall be discharged by former school, or managing board that was selected, or nominated pursuant to regulations valid until coming of this law into force.

The principals of the institutions selected pursuant to regulations valid until coming of this law into force, shall continue working until the expiration of term of office for which they were selected«.

Article 57

After article 159 a new article 159a shall be added; it reads:

»Article 159a

Members of the Council for Professional Education and Council for Adult Education, who have been selected pursuant to regulations valid until coming of this law into force, shall continue working until the expiration of the term of office for which they were selected«.

Article 58

After article 161 a new article 161a shall be added; it reads:

Article 161a

Regulations for the enforcement of this law shall be harmonised with this law within six months as of the day of coming of this law into force.

Until adopting the regulations, pursuant to this law, the regulations valid until coming of this law into force shall be applied, provided that they are not in conflict with this law«.

Article 59

Board for Constitutional Issues and Legislation of the Parliament of Montenegro is authorized to establish a refined text of this law.

Article 60

This law comes into force on the eighth day of as of the day of its publishing in the »Official Journal of the Republic of Montenegro«.

SU-SK Number 01-354/25

Podgorica, 25 July 2007

Constitutional Assembly of the Republic of Montenegro

President

Ranko Krivokapić